

(b) Strike out all or any part of a pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

A corporation cannot represent itself in court. See *Merco Construction Engineers v. Municipal Court* (1978) 21 Cal.3d 725. This holding bars any officers of the corporation from appearing on behalf of the corporation unless they are licensed attorneys. *Id.*

In the instant matter, the Answer for the Defendant, a corporation, was provided by Zoriy Malkov, who appears to be an officer of the corporation, and is not an attorney. Thus, nothing this declarant provided in the Answer conforms to the law as held in *Merco*.

Plaintiff also attempted to meet and confer with Defendant prior to the filing of the Motion, but the attempt met no response.

Finally, any limits on the time within which a Motion to Strike must be filed are triggered by the service of the Answer on the Plaintiff. In the instant matter, there is no proof of the date on which the Answer was served on Plaintiff.

Disposition

Plaintiff's Motion is Granted.

The Answer, in its entirety, will be stricken.

The Defendant will have 10 days from notice of this Order to file an Amended Answer.

Plaintiff to file Order.

9. 9:00 AM CASE NUMBER: L25-06986

CASE NAME: BANK OF AMERICA N.A. VS. RAFAEL ROMERO-ROMERO

*HEARING ON MOTION IN RE: VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT

FILED BY: BANK OF AMERICA N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address where the Defendant was personally served

with the Summons and Complaint.

The parties entered into a CCP 664.6 agreement, filed on 8/29/25, where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$2,730, plus costs, less any credits for payments received.

The Defendant made payments of \$1,886.33.

Costs are \$583.61. A memo on costs was filed with the court.

A dismissal was entered on 10/10/25.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$2,189.61.

Plaintiff to file order on Motion, as well as submit Judgment.

10. 9:00 AM CASE NUMBER: L25-07038

CASE NAME: BANK OF AMERICA N.A. VS. RAFAEL ROMERO-ROMERO

***HEARING ON MOTION IN RE: MOTION TO SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION FILED ON 12/22/25**

FILED BY: BANK OF AMERICA N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address where the Defendant was personally served with the Summons and Complaint.

The parties entered into a CCP 664.6 agreement, filed on 9/8/25, where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$9,389.61, plus costs, less any credits for payments received.